

Court No. - 39

Case :- WRIT - C No. - 35355 of 2014

Petitioner :- M/S Tirupati Containers Pvt. Ltd. & Another

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.P. Pandey

Counsel for Respondent :- C.S.C., Amarendra Nath Singh, Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no. 1, Shri Nripendra Mishra appearing for respondent nos. 2 and 3 and Shri A.N. Singh for respondent no. 4.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 26.05.2014 issued by the respondent No. 3, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

List the case along with other connected matters on 21st July, 2014.

Order Date :- 11.7.2014

VKS

Court No. - 39

Case :- WRIT - C No. - 35355 of 2014

Petitioner :- M/S Tirupati Containers Pvt. Ltd. & Another

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.P. Pandey

Counsel for Respondent :- C.S.C., Amarendra Nath Singh, Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Sri C.B. Yadav, learned Additional Advocate General states that he has been instructed by the Corporation to appear and argue the matter.

On his request, ten days further time is allowed to him to file counter affidavit.

Petitioners will have ten days thereafter for filing rejoinder affidavit.

List immediately after expiry of the aforesaid period.

Order Date :- 21.7.2014

nd

Court No. - 21

Case :- WRIT - C No. - 35355 of 2014

Petitioner :- M/S Tirupati Containers Pvt. Ltd. And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- J.P. Pandey

Counsel for Respondent :- C.S.C., Amarendra Nath Singh, Nripendra Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Counsel for the petitioners states that the petition has become infructuous.

It is dismissed accordingly.

Order Date :- 6.4.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)